KOR STRUCTURAL · CONTRACT CLAUSE LIBRARY · 28 OCTOBER 2026

Contract positions on file

What KOR has signed, what clients ask for, and where KOR's own paper is silent. Read from every contract document on the Projects share and in Project Opportunities.

13,371
files listed on FS01 (project folders + Project Opportunities)

2,653
documents read: PDF, Word, email attachments, 86 scans by OCR

5,175
clauses tagged in 18 topics, across 156 jobs and pursuits

54
jobs with a client's agreement on file, from 27 clients

A · WHAT KOR HAS SIGNED ON THE CLIENT'S PAPER

Wesgroup, 2020 and 2022 (59th & Cambie 30950-01, DocuSigned Nov 2020; River District Parcels 29–30 30961-01, fully executed). **Cap** 9.1: liability limited to the insurance proceeds recoverable under the policies the agreement requires, up to the required minimums. 9.3 removes the cap for gross negligence, third-party injury or property damage, IP infringement, confidentiality and breach of law. 9.2 mutual exclusion of consequential and pure economic loss. **Indemnity** 8.0: breach, negligent error or omission, injury or damage. **IP** 4.1: KOR keeps ownership; Owner takes an irrevocable, perpetual, assignable licence. **Payment** 2.4: 25th cut-off, due end of the following month, Owner pays what it decides is owing with reasons. 13.1: Owner may suspend or terminate at once on a conflict of interest. 11.1 warranty of services free from defects in design.

Aquilini, 2021 (Boardwalk Apartments 30967-01, signed services agreement). **No cap.** 7.1 indemnity for all claims including all actual legal costs and "consequential loss". 1.2.2 "highest standard of care … first tier professional consulting firms". 9.2 Client may withhold and set off. 9.4 Client may suspend for any reason; after 60 days KOR may terminate on 7 days' notice. Payment 30 days, 1.5% a month late. The same template appears unsigned on Intracorp 2021, Strand 2025 and Cielle 2025.

Beedie, 2023 (950 Raymur 70061-01, executed by email). No cap found. 8.1 general indemnity, 8.2 IP indemnity. 6: Instruments of Service stay KOR's; Client licence is irrevocable, perpetual and sublicensable for the Project; other projects need consent and further remuneration. 9.4: KOR may terminate after 365 days' suspension. 5.1: 35 days by EFT, interest at RBC prime, Client pays what it decides is owing with written reasons.

India & Beech, 2023 (San Diego plan check 01664-01, AIA C103 form, Owner signed). 6.1.3 mutual waiver of consequential damages; 6.1.1 claims within 10 years. 5.3 KOR retains copyright, 5.4 licence to Owner, 5.4.1 Owner indemnifies KOR for use without the author. 7.1 non-payment lets KOR suspend on 7 days' notice; 7.3 suspension over 90 days lets KOR terminate. 2.7.6 Owner additional insured on CGL and auto, primary. 8.4 interest after 60 days; 8.5 no withholding for penalties.

Starlight, 2026 (7360 Halifax 31180-01, KOR-signed 8 May 2026; the countersigned copy is not on file). **Cap** 8.4: insured claims to the policy limits; uninsured claims to the lesser of two times the Price and $500,000, down from "lesser of three times the Price and $5,000,000" in the November 2025 draft. 8.2 indemnity with a carve-out for the Owner's and other consultants' negligence and a corporate-only claim. 9.3 IP reserved; project licence rescindable for non-payment. 7.3 suspension pays work done plus recommencement costs, over 60 days KOR may terminate. 7.2 Owner convenience termination on 30 days. 8.1(h) subrogation waiver on CGL only.

KOR's fee proposal countersigned unchanged by Marcon 2020, Peterson/Alabaster 2020, Stream 2021, Anthem SOCO 2 2022, Matchpoint 2022, Moli 2022, Ridge 2022, Siddoo 2022, Sasco 2024, Bush Bohlman 2024, Kevington 2024 and Kerkhoff 2025; BMZ's by Lexi 2017 and Ledingham McAllister 2018. These are the best outcomes on file: KOR's terms, nothing added.

B · KOR'S OWN PAPER

The fee-proposal terms carry no limitation of liability, no consequential-damages exclusion and no IP clause. The master template's only terms are "we carry sufficient professional liability insurance", monthly invoicing, and the right to discontinue work if the client fails to meet commitments. Checked: the 2,415-word Master Fee Proposal Template; 4 mentions of "liability", every one about insurance. When a client signs KOR's proposal, KOR's exposure is uncapped by KOR's own choice. The Starlight 8.4, 8.2 and 9.3 wording is the ready-made content for a terms block in the proposal builder.

C · THE CLIENT PAPER THAT KEEPS COMING BACK, AND WHAT IT ASKS

Wesgroup: Consultant Agreement Template v5 (2018: cap at the insurance limits, mutual consequential exclusion, copyright stays with the consultant) → v11/v12 (2019–2020: broad 7.4.1 indemnity, copyright with the consultant) → the signed PSA above (2020, 2022) → Standard Form Consultant Agreement, February 2025 and April 2026 (current ask on the River District parcels; $5M general liability).

The "CSA" family (Aquilini, Intracorp, Strand, Cielle): no cap, all legal costs, set-off, "highest standard of care", suspension at will for 60 to 180 days. KOR signed it once (Aquilini 2021).

Omicron, Standard Consultant Agreement rev. February 2026: 15.1 mutual excluded liability, caps in 15.3 and 15.4 with 15.5 exceptions, 9.1 Work Product owned by the Owner, 13.1 convenience termination on 30 days, 12.1 suspension on 10 days' notice with 12.3 cost reimbursement.

Holland Partner (US, PSA V13, reviewed by Burke Williams & Sorensen 2019): on full payment KOR conveys all rights including copyright (13); Owner may withhold for any non-compliance; termination or suspension at the Owner's sole discretion with payment for work done as the sole remedy.

Intergulf (US, 2019, reviewed by Williams & Sorensen): indemnity limited to negligence with a mutual consequential waiver (6.01); Instruments of Service become Intergulf's property (5.01); PL insurance $500,000; suspension over 90 days lets either party terminate.

Institutional forms: AIBC 8C (Fraser Health): cap at the lesser of the fee or $250,000, 2-year limitation period, copyright with the consultant, suspension if unpaid 30 days. RAIC Document 9 (RLA Architects 2026): cap at the greater of PL limits or the total fee, direct damages only, mutual third-party indemnity. CCDC-15 (BC Housing via Ventana 2026): direct damages only, PL $1M per claim / $2M aggregate. BC Housing NDAs on every NSDA pursuit.

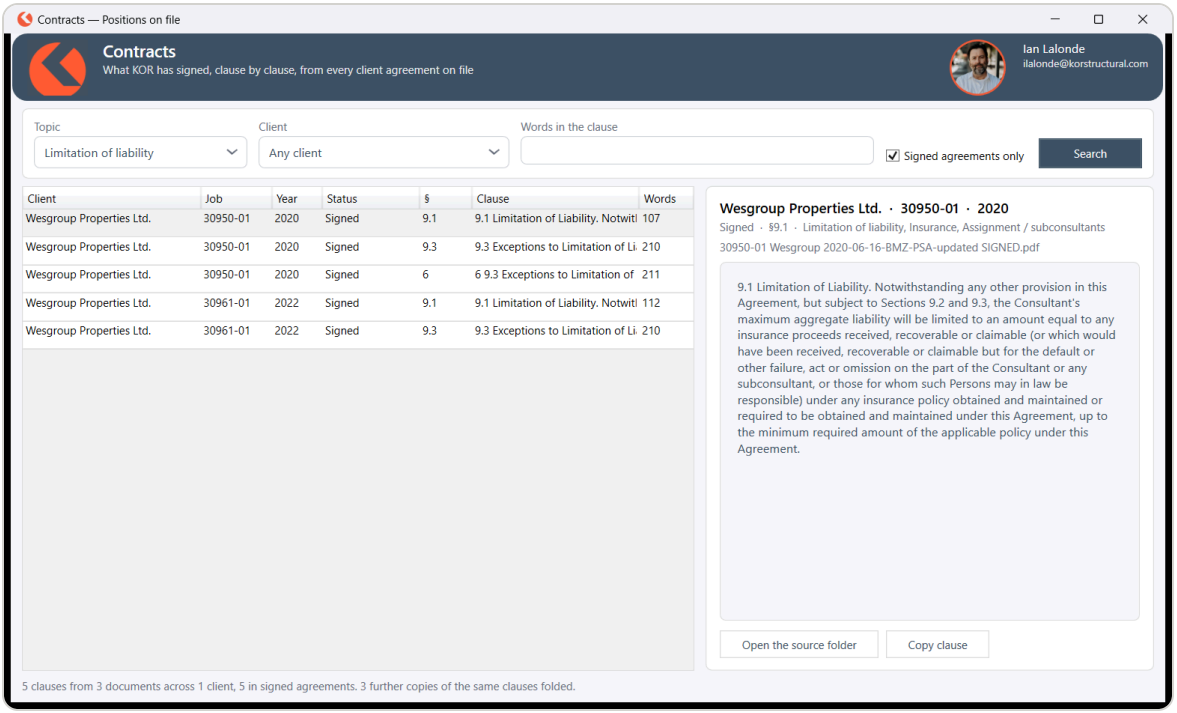
D · WHERE IT LIVES

docs/contract-clause-library/: library_clauses.csv (5,175 clauses with full text, job, client, role, version), documents_roles.csv (1,958 documents), positions.csv (per topic), job_topic_matrix.csv, jobs.csv. **tools/ContractClauseLibrary/**: the pipeline, re-runnable end to end, with a README that says what it does not do. **KorTransmittals** on KOR-APP01: tables ContractClauseSources and ContractClauses and the view vw_ContractPositions (db/KorTransmittals/011), beside the proposal builder's block library, loaded by Import-ContractClauses.ps1. The builder's library has a new "Terms" block (012), KOR standard terms assembled from the Starlight wording, marked draft for Rory.

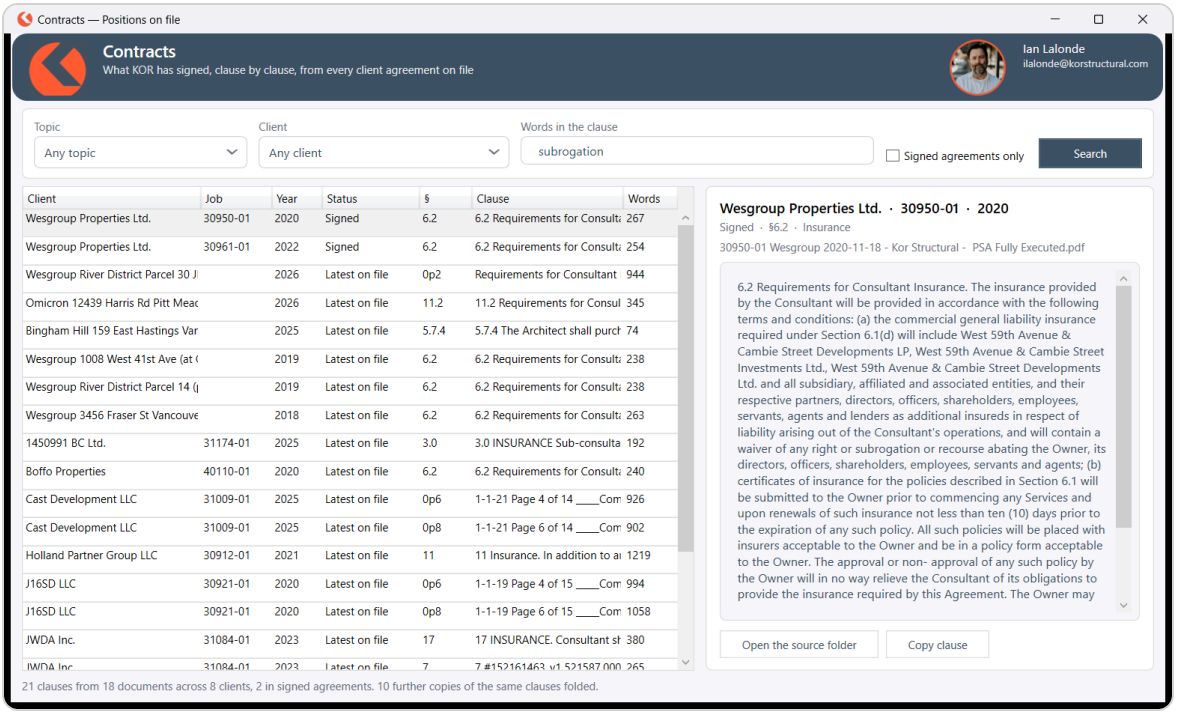
How to read this. "Signed" means the file is named signed or executed, or carries a DocuSign marker; a signed scan filed under a draft's name shows as the latest version on file instead. Clause text is located and copied by the pipeline; the reading above is from the clauses themselves, with section numbers so each can be checked. Of 1,955 files pulled, 7 scans and 18 old files could not be read.

E · THE SCREEN: HOME → CONTRACTS

In KOR Operations, the **Contracts** card on Home opens the library. Pick a topic, a client, or words in the clause; tick **Signed agreements only** to see what KOR actually signed. Each row is one clause from one agreement, signed agreements first, then the latest version on file for each job or pursuit. The clause reads in full on the right; **Open the source folder** goes to the file on the Projects share, **Copy clause** puts the text on the clipboard. The card is shown to the members of the Contracts group.



Limitation of liability, signed agreements only. Five clauses from three documents, one client: Wesgroup's 9.1 cap and 9.3 exceptions on 59th & Cambie (2020) and River District Parcels 29–30 (2022). "3 further copies folded": the same agreement is on file more than once (the folder copy, the email it came in, a scan); one row is shown with the fullest text.



Any topic, words "subrogation". 21 clauses from 18 documents across 8 clients: the two signed Wesgroup insurance clauses first, then the latest version on file for each job and pursuit, from Omicron's 2026 form to Holland Partner's US agreement.